

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF ZAYTSEV AND OTHERS v. RUSSIA

(Applications nos. 5151/18 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

27 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Zaytsev and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 6 April 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23, 10 April 2018, *Kalyapin v. Russia* [Committee], no. 6095/09, § 76, 23 July 2019, concerning various aspects of unlawful deprivation of liberty of organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, related to the examination of criminal cases in the absence of a prosecuting party in the judicial

proceedings governed by the Federal Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

13. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative offence proceedings and alleged restrictions on the right to examine witnesses.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to deal separately with the remaining complaints of the applicants under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 27 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention (disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	5151/18 08/01/2018	**Fedor Aleksandrovich ZAYTSEV** 1995	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of 20,000 Russian roubles (RUB)	Moscow City Court 14/07/2017	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	3,500
2.	958/20 09/12/2019	**Nurlan Toktarovich OMAROV** 1987	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/09/2019	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours	4,000
3.	2492/20 26/12/2019	**Tatyana Grigoryevna TARVID** 1953	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 18/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office for the purpose of drawing up a record of administrative offence on 12/06/2019; detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	4,000

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4.	2612/20 11/12/2019	**Aleksey Petrovich ZELENSKIY** 1971	Savelyev Anton Alekseyevich Domodedovo	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	15-day administrative detention	Moscow City Court 05/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest, escorting to the police station and detention there on 27/07/2019 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	5,000
5.	2967/20 11/12/2019	**Aleksandr Mikhaylovich STREKALOV** 1982	Savelyev Anton Alekseyevich Domodedovo	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6 of CAO	6 days of administrative detention	Moscow City Court 12/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest, escorting to the police station and detention there on 27/07/2019 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	5,000
6.	2971/20 11/12/2019	**Anton Romanovich GALLY** 1997	Savelyev Anton Alekseyevich Domodedovo	Manifestation for fair elections to Mosgorduma Trubnaya square, Moscow 27/07/2019	Article 20.2 § 6 of CAO	fine of RUB 15,000	Moscow City Court 12/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest, escorting to the police station and detention there on 27/07/2019 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	4,000
7.	7802/20 21/01/2020	**Marsel Timurovich ALIYEV** 1999	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Tverskaya str., Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	4,000

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8.	7898/20 31/01/2020	**Matvey Sergeyevich MATVEYEV** 1987	Memorial Human Rights Centre Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 14/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	4,000
9.	8489/20 01/02/2020	**Oleg Nikolayevich KLIMOV** 1982	Laptev Aleksey Nikolayevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	10 days of administrative arrest	Moscow City Court 01/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of any legal grounds for the applicant's arrest and escorting to the police station on 27/07/2019; detention in excess of 3 hours, Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	5,000
10.	9491/20 01/02/2020	**Valeriy Yuryevich RODIN** 1973	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	12 days of administrative arrest	Moscow City Court 01/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police station on 27/07/2019; detention in excess of 3 hours, Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	5,000
11.	11417/20 07/02/2020	**Artem Igorevich KUZNETSOV** 1996	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Trubnaya square, Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/11/2019	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	3,500

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12.	14654/20 29/02/2020	**Aleksandr Vitalyevich SEMIGLAZOV** 1992	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Rozhdestvenskiy boulevard, Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – arrest, escorting to the police station and detention on 27-29 July 2019 for the sole alleged purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	4,000
13.	14655/20 29/02/2020	**Maksim Stanislavovich KAZAK** 1996	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Tverskaya str., Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/08/2019	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest, escorting to the police station and detention on 27-29 July 2019 for the sole alleged purpose of drawing up a record of administrative offence	4,000
14.	14666/20 29/02/2020	**Maksim Mikhaylovich UCHAYKIN** 1988	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Rozhdestvenskiy boulevard, Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	5 days' administrative arrest	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest, escorting to the police station and detention on 27-29 July 2019 for the sole alleged purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	5,000

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15.	15299/20 11/03/2020	**Ilya Yevgenyevich PANKOV** 1982	Bayturina Svetlana Nikolayevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/09/2019	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence	4,000
16.	15304/20 11/03/2020	**Sergey Sergeyevich KUZMIN** 2000	Bayturina Svetlana Nikolayevna Moscow	Manifestation for fair elections to Mosgorduma Trubnaya square, Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/09/2019	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence	4,000
17.	17323/20 16/03/2020	**Vladimir Nikolayevich SITNIKOV** 1971	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Tverskaya str., Moscow 27/07/2019	Article 20.2 § 8 of CAO	fine of RUB 150,000	Moscow City Court 16/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest, escorting to the police station and detention on 27-29 July 2019 for the sole alleged purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	6,000
18.	17634/20 16/03/2020	**Roman Eduardovich ZAMKOV** 1978	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 16/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27-29/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	4,000

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19.	20018/20 10/03/2020	**Andrey Anatolyevich FILONOV** 1993	Markin Konstantin Aleksandrovich Velikiy Novgorod	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 12/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention on 27/07/2019 in excess of 3 hours for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	4,000
20.	20318/20 25/03/2020	**Denis Yuryevich PORTNOV** 1984	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 02/12/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27-28/07/2019 for the sole purpose of drawing up a record of administrative offence; raised on appeal; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.